

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

URIAH BROWN,

X
SUMMONS

Plaintiff,

-against-

CITY OF NEW YORK, P.O. JOSEPH AYALA, and
OFFICERS JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers,

Plaintiff designates
BRONX County as the
place of trial
The base of value is:
CPLR (3)

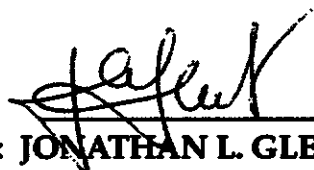
Defendants.
_____X

RECEIVED
13 OCT 16 PM 4:04
COUNTY CLERK
BRONX COUNTY

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
October 10, 2013


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Joseph Ayala, Shield 003194 of the 46th Precinct
2120 Ryer Avenue Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
URIAH BROWN,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. JOSEPH AYALA, and
OFFICER[S] JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers,

Defendants.
-----X

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Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF URIAH BROWN UNDER 42 U.S.C. §1983

1. At the time of the commencement of this action, plaintiff URIAH BROWN was

and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and

State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about July 20, 2012, P.O. JOSEPH AYALA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about July 20, 2012, at approximately 10:30 P.M., P.O. JOSEPH AYALA was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about July 20, 2012, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
8. That on and about July 20, 2012 at approximately 10:30 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.
9. That on or about July 20, 2012 at approximately 10:30 P.M., at or near the northwest corner of East 174th Street and Clay Avenue, Bronx, New York, the plaintiff URIAH BROWN was improperly arrested, and confined without warrant, proper

authority or justification, having no reason in law or in fact to arrest or confine URIAH BROWN.

10. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

11. That during the arrest of plaintiff the defendants, their agents, servants and/or employees utilized unnecessary, unjustified excessive force upon plaintiff.

12. That thereafter, at the 46th Precinct, 2120 Ryer Avenue Bronx, New York, the defendants, their agents, servants and/or employees strip searched the plaintiff without a reasonable, articulable suspicion that he was secreting evidence underneath clothing or within a bodily cavity.

13. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

14. That the defendants P.O. JOSEPH AYALA and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an

unjust prosecution initiated without probable cause that the prosecution would succeed.

15. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and threaten and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

16. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution of URIAH BROWN.

17. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty.

18. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement, thereby causing fright, shock, emotional distress and physical consequences.

19. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy, practice and procedure that inexorably led to the arrests of innocent persons, by the explicit or implicit policy of setting productivity goals or arrest quotas. Said policy

and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

20. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy, practice and procedure known as the 'stop, question and frisk' program when individualized reasonable or probable cause does not exist, as occurred to the plaintiff herein. Furthermore, in the action brought in the United States District Court, Southern District of New York, Case 08-CV-01034, DAVID FLOYD, LALIT CLARKSON, DEON DENNIS and DAVID OURLICHT, individually and on behalf of a class of all others similarly situated against CITY OF NEW YORK, et al, the Honorable Shira A. Scheindlin, found that based upon the facts and evidence presented in that court, including that between 2004 and 2008 2.8 million people were subject to stops by the NEW YORK CITY POLICE DEPARTMENT, and only 10% of those were caucasians, while 50% were black and 30% were hispanic, and that the action was only brought after a 2003 settlement expired which intended to remedy racial disparities in such stops failed to alleviate the practice, and in fact the defendants expressly continued the

practice in order to specifically reduce weapons possessions amongst minority, primarily young and male populations amongst other reasons, and the court found that the policy resulted in vast amounts of racially based Fourth Amendment violations.

21. Additionally to those named in the Floyd action plaintiff of aware of the following individuals who have been subject to this unlawful policy: KERRY DIXON on January 7, 2010; ISAAC WATKINS on August 15, 2008; LUIS MEDINA on February 4, 2009; DAVID PALUZZI on April 25, 2010 and DANIEL AGUERO February 9, 2011, along with the multitudes of others so situated.

22. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority under the auspices of a 'stop and frisk' policy, and utilizing unreasonable invasive search procedures without individualized articulable reasonable suspicion of the secreting of evidence.

23. Moreover, patterns of such the aforesaid conduct of arresting persons for such charges as resisting arrest and/or disorderly conduct in an ill fated attempt at justifying defendants' unnecessary unjustified excessive force and without individualized reasonable or probable cause of such charges is demonstrated because multiple individuals have been subject to the same unjustified and fabricated charges, to wit, as a

sample and small example: ESHAWN SUTTON was wrongfully subject to similar charges after being assaulted by P.O. JOEY RODRIGUEZ on or about August 17, 2010 at approximately 1:55 P.M., in front of 500 East 165th Street, Bronx, New York ; ARAMIS RODRIGUEZ was wrongfully subject to similar charges after being assaulted by Det. LISANDRO RIVERA on or about April 10, 2009 at approximately 2:30 P.M., at the southeast corner of Faile Street and Westchester Ave. , Bronx, New York; JUAN VALDIVIA was wrongfully subject to similar charges after being assaulted by P.O. JAIRO GONZALEZARANGO and P.O. ROBERT, GAZSY on or about January 16, 2010 at approximately 7:15 P.M., in front of 106 West 143rd Street, New York, New York; BENETIO MYTON was wrongfully subject to similar charges after being assaulted by P.O. ELEANOR WALSH and P.O. BRANDON RAVELO on or about March 30, 2010 at approximately 8:45 P.M., at or neat the intersection of East 220th Street and White Plains Road, Bronx, New York and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

24. Furthermore patterns of wrongful strip searches conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily

cavity has occurred to such individuals such as, for instance, KAISON SHAW on February 20, 2009 at the 46th Precinct; SHARON GUILLEBEAU on August 18, 2009 and again on September 23, 2009 at the 46th Precinct; DAVID PALUZZI on or about April 25, 2010 at the 46th Precinct; JEFFREY JACKSON on or about November 12, 2010; WILLIE REEVES on December 15, 2010 and February 18, 2011; KAMAMA COLEMAN at the 46th Precinct on April 6, 2011; JOSE SOSA on May 19, 2011 at the 46th Precinct; YAMRICK PARKER at the 46th Precinct on February 5, 2011, and is well evidenced by the May 14, 2004 letter by the Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://www.nyc.gov/html/ccrb/pdf/stripsearchletter.pdf>, and as evidenced by the above and within individuals and countless others demonstrates that said practices continue unabated.

25. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

26. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the

plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

27. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

28. That as a result of the foregoing, the plaintiff URIAH BROWN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF URIAH BROWN

29. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 28 as though more fully set forth herein.

30. That on or about October 15, 2012, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by delivering a copy thereof to the

offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted a General Municipal Law §50h hearing of plaintiff on October 7, 2013, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

31. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

32. That on or about July 20, 2012 at approximately 10:30 P.M., at or near the northwest corner of East 174th Street and Clay Avenue, Bronx, New York, the plaintiff URIAH BROWN was improperly arrested, and confined without warrant, proper authority or justification, having no reason in law or in fact to arrest or confine URIAH BROWN.

33. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff of Due Process under Law.

34. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

35. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

36. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff without privilege and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement, thereby causing fright, shock, emotional distress and physical consequences.

37. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

38. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

39. That as a result of the foregoing, the plaintiff URIAH BROWN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF URIAH BROWN

40. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 39 as though more fully set forth herein.

41. That during the arrest of plaintiff the defendants, their agents, servants and/or employees utilized unnecessary, unjustified excessive force upon plaintiff.

42. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendants' actions or omissions, plaintiff URIAH BROWN was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be

prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

43. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF URIAH BROWN

44. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 43 as though more fully set forth herein.

45. That following plaintiff's arrest, and at the 46th Precinct, 2120 Ryer Avenue Bronx, New York, the defendants, their agents, servants and/or employees strip searched the plaintiff without a reasonable, articulable suspicion that he was secreting evidence underneath clothing or within a bodily cavity..

46. That the defendants, their agents, servants and/or employees employed and utilized unreasonable and invasive search methods and procedures upon the plaintiff such as a strip search without without and individualized articulable reasonable suspicion of the secreting of evidence.

47. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

48. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendants' actions or omissions, plaintiff URIAH BROWN was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

49. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF URIAH BROWN

50. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 49 as though more fully set forth herein.

51. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

52. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper stoping and searching, and the arrest of individuals, and in the utilization of

invasive search procedures utilized without reasonable individualized suspicion of the secreting of evidence.

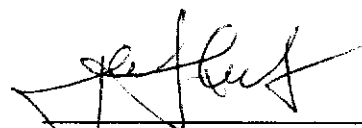
53. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff URIAH BROWN was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

54. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third, Fourth and Fifth Causes of Action inclusive of punitive damages, and

attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all
lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
October 10, 2013



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
URIAH BROWN

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-020

To:
CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept. , New York, New York 10007

P.O. Joseph Ayala, Shield 003194 of the 46th Precinct
2120 Ryer Avenue Bronx, NY 10457

PLAINTIFF'S VERIFICATION

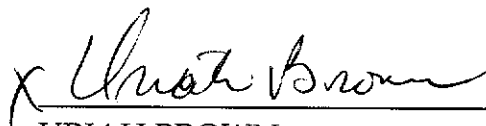
URIAH BROWN affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


URIAH BROWN